



Kashmir and the 80th Independence Day: What Changed?

So, based on the title, here I am going to talk about the most historic moment that took place which changed how entire nation, looked at Kashmir. So the story began from the time when India got independence, i.e 15th August 1947, from British and at that period of time Jammu & Kashmir was an independent "princely state" ruled by a king named **Maharaja Hari Singh**.

So during that time there were pleas created to join Pakistan and India together as we know about the story of **Mahatma Gandhi**, but **Maharaja Hari Singh** didn't want to join India or Pakistan right away.

So around October, tribal people from Pakistan invaded Kashmir regions, so Maharaja asked India for military help. India agreed, but on one condition: he had to sign a paper called the **Instrument of Accession**, making Kashmir a part of India. This led to **Article 370** as a "temporary measure" when the Indian Constitution was written.

So now let's understand what Article 370 actually was :

Article 370 was a special law in the Indian Constitution that gave a unique, semi-independent status to the region of **Jammu and Kashmir (J&K)**.

Under this law, J&K had privileges that no other Indian state had:

- **Its own rules:** It had its own state constitution and its own regional flag.
- **Land restrictions:** People from the rest of India were legally blocked from buying land or permanently settling there.
- **Limited central control:** The Indian government in New Delhi could only easily control major areas like defence, foreign affairs, and communications. For most other national laws to apply there, the local J&K government had to agree first.

So based on above parameters and some loop holes the government decided to remove Article 370 from Indian constitution (I will discuss the loop hole and how they fixed it later ahead)

On **August 5, 2019**, Prime Minister Narendra Modi's government officially **abrogated (removed) Article 370**.

- They cancelled the special status.
- They divided the state into two Union Territories controlled directly by the central government: **Jammu & Kashmir**, and **Ladakh**.
- Since then, the region has been fully bound by the exact same Indian Constitution as every other state

So now what were the loopholes and how they fixed it ?

Everyone thought Article 370 was impossible to remove because the Indian Constitution said it could only be modified if the "Constituent Assembly of Jammu and Kashmir" agreed to it. Since that assembly was dissolved way back in 1957, politicians believed the law was permanently locked in

But the Joint Secretary in the Prime Minister's Office (PMO) discovered a clever constitutional loophole and presented the strategy to the Home Minister (based on Amit Shah) and the Prime Minister (based on Narendra Modi) to make Article 370 ineffective without triggering a legal crisis.

She dugged through old legal archives and found a hidden loophole:

1. She suggested using **Article 367** (which deals with how to interpret legal terms in the Constitution).
2. She proposed changing the definition so that the phrase "*Constituent Assembly of J&K*" would mean the "*Legislative Assembly of J&K*" (the local state government).
3. Since Kashmir was under Governor's Rule at the time (meaning there was no local elected government), the power of the Legislative Assembly automatically belonged to the **Indian Parliament**.
4. Therefore, the Indian Parliament could legally grant permission to itself to remove Article 370!

While the move was highly popular across most of India, it faced severe backlash from local Kashmiri leaders and international critics:

- **Loss of Identity:** Local leaders felt that removing the law erased Kashmir's unique cultural identity and historical autonomy promised during its accession to India in 1947.
- **Demographic Fears:** Many residents worried that allowing non-Kashmiris to buy land was a deliberate political move to change the region's Muslim-majority demographics by encouraging outsiders to move in.
- **How it Was Done:** Critics heavily condemned the method used to pass the decision. To prevent massive street protests, the government enforced a strict lockdown, cut off internet and phone lines for months, and placed local political leaders under house arrest.

The legal debate ended in December 2023, when the **Supreme Court of India officially upheld the removal of Article 370**. The court ruled that the article was always meant to be a temporary transition law and that J&K did not hold separate sovereignty from the rest of India.

Then how it was related to the 80th Independence Day?

India celebrated its landmark **80th Independence Day on August 15, 2026**. Article 370 connected to this milestone in a few major ways:

- **A Double Anniversary:** August 2026 marked exactly **seven years since Article 370 was removed** (August 2019 to August 2026). During the Independence Day season, the government heavily highlighted this 7-year milestone as a turning point for peace and new infrastructure in Kashmir.
- **The "One Nation" Theme:** The core vision of India's 80th Independence Day revolved around a completely unified nation moving toward the future (*Viksit Bharat*). The government used the occasion to celebrate that the entire country—from Kashmir to Kanyakumari—now shares **"One Nation, One Constitution, One Flag"**.
- **The Current Political Debate:** Independence Day is always a time for major political speeches. At the main celebrations in Delhi, the ruling government proudly defended the removal of the law as an end to separatism. Meanwhile, during local Independence Day events in Srinagar, newly active regional leaders like J&K Chief Minister Omar Abdullah used their platforms to peaceably demand that their lost statehood and historical rights be given back

So writing this article , my opinion on this would be , it was a great move , that article 370 was removed , this law never came in the sight since india's independence and many people took advantage of this to promote unfair means , so what do you all think about it???